

7. S-PR-0013051 In Re the Estate of Shackelford, Carol Len

Appearance is required for hearing on motion to compel delivery of records under C.C.P. § 129.

It is recommended the motion be denied, as follows.

Administrator Cheley Hokanson has not invoked any procedure which permits relief. Coroner records may be obtained under C.C.P. § 129 by one of two methods: first, by a written authorization which includes requisite information, whether or not a civil action is pending (C.C.P. § 129(a)(3)(A)); second, by a subpoena, but only when issued by a "party who is a legal heir or representative of the deceased person in *a pending civil action*" (C.C.P. § 129(a)(3)(B)).

Administrator relies entirely on the (a)(3)(B) subpoena process. However, no civil action between administrator and any other person concerning decedent's death is known to court to be pending in this or any other jurisdiction. The second, third, and fourth amended petitions to administer the estate cannot support administrator's subpoena for at least two reasons. First, administrator offers no legal authorities showing that a petition to administer estate is a petition relating to the death of the decedent where coroner photographic and video evidence may be used, as required by C.C.P. § 129. Second, any right to discovery under the petitions to administer estate expired when the 4th amended petition was granted. An administrator is not entitled to conduct discovery or issue witness subpoenas except in a pending action. See Prob.C. § 1000(b). The motion and requested sanctions must, accordingly, be denied.

The motion is additionally moot because administrator now concedes that the coroner has released the requested information.

Finally, although Placer County and the Placer County Sheriff's Office opposed this petition as real persons in interest for Sheriff-Coroner-Marshall Wayne Woo, administrator made now showing of any kind to support any relief against responding persons "Deputy Alexis Bliss," "Deputy Christopher Sutherland," "Ross Byers," "CDC E. Hintze," "Sgt M. Cuevas," "Sgt Nathaniel Giovanetti," "Vanessa Garcia Flores," "Stephanie Hicks," and "Aimee Kincade." All relief must be denied as to these persons.

These calendar notes are not a tentative ruling by the court on the merits of the motion, contrary to the statement made in administrator's renewed reply filed September, 4, 2026. Instead they are offered to assist the parties and persons involved and the court to prepare for the hearing. Local Rule 80.4.1.

Note: the court had reserved a hearing date for a petition to determine estate property. No such petition has been filed, despite the several notices of hearing filed June 20, 2025, July 11, 2025, and May 18, 2026. The court made clear at the June 5, 2026, hearing that administrator's 4th amended petition to administer estate was not an

appropriate petition in which to assert § 850 claims. The reserved hearing for the intended petition to determine estate property was accordingly dropped.

8. S-PR-0013289 In Re the Estate of Wiley, Peter Cornelius

Appearance is required for continued hearing on petition for final distribution.

This matter was previously continued to address the following calendar notes, both of which remain unresolved:

Petitioner response is needed: petitioner reports that estate real property was sold for \$525,000. The allegations instead establish that no real property was sold (real property remains in the estate; there are no proceeds of sale in the estate). Petitioner and other heirs appear to have agreed upon a valuation for distribution of the property. Valuation change for distribution purposes does not constitute sale of property. Because no sale occurred, there is also no gain on sale of real property for any purpose, including calculation of attorney fees.

Proposed distribution is contrary to intestacy. As prayed, petitioner would receive approximately 20.4% of the estate; Chorny, 26.5%; and D Wiley 53%. Intestacy requires equal distributions of assets determined by date-of-distribution value; petitioner offers no factual or legal basis for unequal distributions of the estate.

9. S-PR-0013296 In Re the Estate of Bartels, Frank Virgil

Appearance is required for fourth bond review hearing.

Missing inventory and appraisal, which is now overdue. Missing other information concerning the need for bond.

10. S-PR-0013477 In Re the Klusnick Fam Rev Trust

Appearance is required for continued hearing on first / final (first post-death) account, as supplemented.

11. S-PR-0013612 In Re the Julius C Gabriele Liv Trust

Petition to determine trust terms and to instruct trustee

Appearance is required for continued hearing to determine trust terms and to instruct trustee.

Trustee's motion for summary judgment

Appearance is required for hearing on trustee's motion for summary judgment.